

VETO

OVERRIDDEN

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 18-004
amendments to Title 16, Chapter 3
of the Chickasaw Nation Code
(Legislation)

PASSED

VETOED

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has reviewed Title 16 of the Chickasaw Nation Code and finds it necessary to amend said Title to help promote clarity.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves the following amendment to Title 16, Chapter 3 of the Chickasaw Nation Code. Additions will be shown in shading and deletions will be shown as stricken. All other sections of Title 16, Chapter 3 are not affected by this resolution.

SECTION 16-301 LEGISLATION, RETURN REQUIRED, NUMBERING SYSTEM.

A. Legislation

This Legislative Reform Act designates three separate and distinct categories of legislation adopted by the legislature, and provides for the numbering of each:

1. General Resolutions shall ~~all be~~ be all resolutions which ~~do not~~ have the effect and force of law, ~~but which~~ and are used to express the opinion or will of the majority of the Legislature. Examples of General Resolutions are those used to commend or to condone certain persons or activities respectively, those used to authorize the application process for programs or services funding, those used to approve leases, contracts or other business which does not require placement into the tribal code ~~enacting into law~~, and those which approve of gubernatorial appointments. Such resolutions shall be in effect upon concurrence by the Governor or as is otherwise provided in the Constitution.

2. Permanent Resolutions shall ~~all be~~ be all resolutions which have the effect and force of law. An example of a Permanent Resolution is one used to repeal or amend a Tribal Law or another Permanent Resolution. Such resolutions shall have the force and effect of law upon concurrence by the Governor or as is otherwise provided in the Constitution.

3. Tribal Laws:

a. Tribal Laws shall be any properly enacted and executed legislation that has the force and effect of law, whether originally styled as a Resolution, Enactment, Tribal Law, Act, or Bill and when enacted shall be made a part of the Tribal Code of the Chickasaw Nation.

B. Return Required

b. In compliance with Article XI, Section 3, of the Constitution, if legislation adopted by the Legislature is not returned to the office of the Legislature by 5:00 p.m. on the Friday following the Friday Regular Session, or by 5:00 p.m. the fifth working day following any other session of the Legislature, whether concurred with, left unsigned, or vetoed by the Governor, it shall be in effect.

C. Numbering System

c. Each category of legislation shall be numbered in series to correspond with the Legislature in which each is introduced as well as the number of General Resolution, Permanent Resolution, or Tribal Law. For example, the first General Resolution adopted by the Ninth Legislature shall be designated: GR9-01. The first Permanent Resolution adopted by the Ninth Legislature shall be designated: PR9-01. The first Tribal Law adopted by the Ninth Legislature shall be designated: TL9-001. In all instances, the numbers assigned to each category shall be in numerical order in the order that they are introduced, whether or not they are adopted and/or receive the Governor's concurrence. This numbering system shall be retroactive upon adoption of this act.

SECTION 16-302 **FORMAT FOR RESOLUTIONS.**

The Chickasaw Tribal Legislature hereby sets forth the format by which all resolutions shall be written (See Appendix 3):

A. The first **WHEREAS** clause shall state: in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

B. The second **WHEREAS** clause shall state: in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

C. Additional **WHEREAS** clauses may be included to provide other descriptive or explanatory information in the body of the resolution.

CHICKASAW TRIBAL LEGISLATURE

General Resolution Number 00-00

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS,

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on , 2001, by a vote of ___ ayes, ___ nays, ___ abstentions.

Chairperson
Chickasaw Tribal Legislature

Secretary
Chickasaw Tribal Legislature

Concur: _____ Date: _____
_____, Governor
The Chickasaw Nation

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 16, 2001, by a vote of 9 ayes, 4 nays, 0 abstentions.

Chairperson
Chickasaw Tribal Legislature

Secretary
Chickasaw Tribal Legislature

Concur: _____
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 21 2001

VETO

OVERRIDDEN

Gubernatorial veto overridden in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on March 16, 2001, by a vote of 9 ayes, 4 nays, and 0 abstentions.

APPENDIX 3

Chairperson
Chickasaw Tribal Legislature

Secretary
Chickasaw Tribal Legislature

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 18-004
Amendments to Title 16, Chapter 3
of the Chickasaw Nation Code
(Legislation)**

Explanation: This resolution approves changes to Title 16, Chapter 3 to improve organization and promote clarity.

Requested By: Legislative Committee

Presented By: Lisa Shephard, Chairman
Legislative Committee